

		Moving Defendant shall give notice of this ruling.
9	Hernandez vs. Mathis Bros. Oklahoma LLC	CMC
10	Verganza Chavez vs. Savant Construction, Inc.	TENTATIVE RULING: <u>Motion to Consolidate</u> For the reasons set forth below, the unopposed Motion to Consolidate brought by Defendant Savant Construction, Inc. is GRANTED, pursuant to Code of Civil Procedure section 1048, subdivision (a). The instant action (<i>Verganza Chavez v. Savant Construction, Inc. et al.</i>, Case No. 2025-01481769) will be consolidated with <i>Palomar Specialty Insurance Company v. Savant Construction, Inc. et al.</i> (Case No. 2025-01491799), for all purposes. The instant action (Case No. 2025-01481769) will serve as the lead case. <u>Procedural Requirements for a Motion to Consolidate</u> Rule 3.350(a) of the California Rules of Court sets forth the requirements for a motion to consolidate: (1) A notice of motion to consolidate must: (A) List all named parties in each case, the names of those who have appeared, and the names of their respective attorneys of record; (B) Contain the captions of all the cases sought to be consolidated, with the lowest numbered case shown first; and (C) Be filed in each case sought to be consolidated. (2) The motion to consolidate: (A) Is deemed a single motion for the purpose of determining the appropriate filing fee, but memorandums, declarations, and other supporting papers must be filed only in the lowest numbered case; (B) Must be served on all attorneys of record and all nonrepresented parties in all of the cases sought to be consolidated; and (C) Must have a proof of service filed as part of the motion.

General Principles Re Consolidation of Cases

When there are actions involving common questions of law or fact pending, a court may order a joint trial of any or all of the matters in issue in the actions or may order all the actions consolidated, or such orders concerning proceedings therein as may tend to avoid unnecessary costs or delay. (Code Civ. Proc. § 1048(a).) The purpose of consolidation is to enhance trial court efficiency (i.e., to avoid unnecessary duplication of evidence and procedures); and to avoid the substantial danger of inconsistent adjudications (i.e., different results because tried before different juries, or a judge and jury, etc.). Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial, 12:340 (The Rutter Group 2012).

There are two types of consolidation, a complete consolidation which results in a single action and a consolidation of separate actions for trial. (*Sanchez v. Superior Court* (1988) 203 Cal.App.3d 1391, 1396.) When cases are consolidated completely, which is usually ordered where the parties are identical and the causes could have been joined, the pleadings are considered merged, one set of findings is made, and one judgment is rendered. (Id.) When cases are consolidated for trial only, the pleadings, verdicts, findings and judgments are kept separate and the actions are simply tried together for the sake of convenience and judicial economy. (Id.)

The granting or denial of the motion to consolidate rests in the sound discretion of the trial court, and will not be reversed except upon a clear showing of abuse of discretion. (*Todd-Stenberg v. Dalkon Shield Claimants Trust* (1996) 48 Cal.App.4th 976, 978–79.)

Each case presents its own facts and circumstances, but the court will usually consider the following: (1) timeliness of the motion: i.e., whether granting consolidation would delay the trial of any of the cases involved, or whether discovery in one or more of the cases has proceeded without all parties present; (2) complexity: i.e., whether joining the actions involved would make the trial too confusing or complex for a jury; and (3) prejudice: i.e., whether consolidation would adversely affect the rights of any party. (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial, 12:362.)

Merits

A review of the actions proposed for consolidation confirms that each arises from the same injury sustained by Hector Rolando Verganza Chavez on June 24, 2023, such that there are clearly common questions of law and fact. In both cases, a determination will be made as to

		whether Defendants Savant Construction, Inc. and Central City Wrecking, Inc. are liable for the injuries sustained by Mr. Verganza Chavez. Given this central common question, consolidation serves the purpose of judicial efficiency. Defendant is ordered to comply with California Rules of Court, rule 3.350(c), which states: “An order granting or denying all or part of a motion to consolidate must be filed in each case sought to be consolidated.” (Cal. Rules of Court, rule 3.350(c).) Thereafter “any subsequent document must be filed only in the lead case.” (<i>Ibid.</i>) Defendant to give notice.
11	Young vs. Gunlei Corporation	TENTATIVE RULING: <u>Motion to Vacate</u> Plaintiffs and Cross-Defendants William and Jennifer Young move to vacate the Court’s October 22, 2025, order entered in favor of Defendants and Cross-Complainants and striking JBY Enterprise, Inc. as an improper Cross-Defendant from the Cross-Complaint. For the following reasons, the motion is DENIED. Plaintiffs seek to vacate or modify the Court’s minute order dated October 22, 2025. The October 22, 2025, order denied without prejudice Plaintiffs’ motion for leave to amend and granted Defendants and Cross-Complainants Gunlei Corporation, Egreen Transport Corporation, Hong Chen, Jing (Amy) Song, Yu Wang (Monica), Wen Chen, and Elaine Huang’ Motion to Strike Cross-Defendant JBY Enterprise, Inc.’s Answer to the Cross-Complaint. Plaintiffs do not challenge the portion of the October 22, 2025, order relating to Plaintiffs’ motion for leave to amend. After all, they have subsequently been granted leave to amend and filed a Second Amended Complaint on April 23, 2026. (ROA 809.) Instead, Plaintiffs claim that JBY Enterprise, Inc. has assigned all of its contractual rights, obligations, and liabilities to Plaintiffs individually. Thus, Plaintiffs contend that “the October 22, 2025, Order should be vacated under Code of Civil Procedure §473(d), and JBY Enterprise, Inc. should be stricken as an improperly named Cross Defendant pursuant to § 436(a) and §389(b).” (ROA 759.) Code Civ. Proc. § 473(d) provides:

The court may, upon motion of the injured party, or its own motion, correct clerical mistakes in its judgment or orders as entered, so as to conform to the judgment or order directed, and may, on motion of either party after notice to the other party, set aside any void judgment or order.

Plaintiffs have not shown that the October 22, 2025, contains clerical mistakes or is void in any way that justifies relief under Code Civ. Proc. § 473(d). The fact that Plaintiffs caused JBY Enterprise, Inc. (“JBY”) to assign its assets and liabilities to Plaintiffs does not change the contract underlying the Cross-Complaint, which identifies JBY. (ROA 516.) Nor does it necessarily release JBY from its contractual obligations.

Plaintiffs also cite to Code Civ. Proc. § 436(a), which provides that a Court may strike any irrelevant, false, or improper matter inserted in any pleading. Aside from the fact that Plaintiffs have not demonstrated compliance with the procedural requirements of a motion to strike (see, e.g., Code Civ. Proc. § 430.41 and CRC Rule 3.1322(a)), Plaintiffs have not established that JBY is an improper Cross-Defendant.

Finally, Plaintiffs cite to Code Civ. Proc. § 389(b). Section 389 governs compulsory joinder of parties Section 389(b) provides:

(b) If a person as described in paragraph (1) or (2) of subdivision (a) cannot be made a party, the court shall determine whether in equity and good conscience the action should proceed among the parties before it, or should be dismissed without prejudice, the absent person being thus regarded as indispensable. The factors to be considered by the court include: (1) to what extent a judgment rendered in the person's absence might be prejudicial to him or those already parties; (2) the extent to which, by protective provisions in the judgment, by the shaping of relief, or other measures, the prejudice can be lessened or avoided; (3) whether a judgment rendered in the person's absence will be adequate; (4) whether the plaintiff or cross-complainant will have an adequate remedy if the action is dismissed for nonjoinder.

(Code Civ. Proc. § 389(b).)

Plaintiffs do not provide any reasoned argument as to how Section 389(b) is relevant to their motion.

		Plaintiffs and Cross-Defendants William and Jennifer Young shall give notice of this ruling.
12	Do vs. Pham	TENTATIVE RULING: For the reasons set forth below, Cross-Defendant Nguyen Nhu Nguyen’s motion for summary judgment/adjudication is DENIED. <u>Defective Proof of Service</u> As a preliminary matter, Cross-Defendant Nguyen only filed a proof of service for the separate statement, which shows that it was served on 10/31/26. (See ROA 185). There is no proof of service for the motion, the memorandum of points and authorities, or the declaration of Mr. Nguyen. Nevertheless, Cross-Complainant Pham opposed the motion on the merits and did not raise this defect. Thus, the court will address the merits. <u>Statement of Law</u> “Summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) A “party moving for summary judgment bears an initial burden of production to make a prima facie showing of the nonexistence of any triable issue of material fact” (<i>Aguilar v. Atlantic Richfield Co.</i> (2001) 25 Cal.4th 826, 850.) “A prima facie showing is one that is sufficient to support the position of the party in question.” (<i>Id.</i> at 851.) A defendant moving for summary judgment satisfies the initial burden by submitting undisputed evidence “showing that a cause of action has no merit [because] one or more elements of the cause of action, even if not separately pleaded, cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc. § 437c, subd. (p)(2); <i>Aguilar v. Atlantic Richfield Co.</i>, <i>supra</i>, 25 Cal.4th at pp. 850-51.) However, “[t]he defendant <i>must</i> indeed present ‘evidence’.” (<i>Aguilar</i>, <i>supra</i>, 25 Cal.4th at 855, italics original.) In addition, if a plaintiff has pleaded several theories, the defendant has the burden of demonstrating there are no material facts requiring trial on any of them. (<i>Carlsen v. Koivumaki</i> (2014) 227 Cal.App.4th 879, 889.) If a defendant fails to meet this initial burden, the plaintiff need not oppose the motion and the motion must be denied. (<i>Binder v. Aetna Life Ins. Co.</i> (1999) 75 Cal.App.4th 832, 840; see also <i>Dix v.</i>

Live Nation Entertainment, Inc. (2020) 56 Cal.App.5th 590, 604 [where the evidence presented by defendant does not meet its burden, the motion must be denied without looking at the opposing evidence, if any, submitted by plaintiff.]).

If the moving party meets its burden, the burden then shifts to the party opposing summary judgment to show, by reference to specific facts, the existence of a triable, material issue as to a cause of action or an affirmative defense. (*Aguilar, supra*, 25 Cal.4th at p. 855; *Villacres v. ABM Industries, Inc.* (2010) 189 Cal.App.4th 562, 575.)

The nonmoving party must present substantial evidence in order to avoid summary judgment. (*Sangster v. Paetkau* (1998) 68 Cal.App.4th 151, 163.) “In some instances . . . , ‘evidence may be so lacking in probative value that it fails to raise any triable issue.’” (*Whitmire v. Ingersoll-Rand Co.* (2010) 184 Cal.App.4th 1078, 1083-1084, *quoting Advanced Micro Devices, Inc. v. Great American Surplus Lines Ins. Co.* (1988) 199 Cal.App.3d 791, 795.) “‘If the plaintiff is unable to meet her burden of proof regarding an essential element of her case, all other facts are rendered immaterial.’” (*Saelzler v. Advanced Group 400* (2001) 25 Cal.4th 763, 780, *quoting Leslie G. v. Perry & Associates* (1996) 43 Cal.App.4th 472, 482.)

In ruling on a motion for summary judgment, “the court must ‘consider all of the evidence’ and ‘all’ of the ‘inferences’ reasonably drawn therefrom, and must view such evidence and such inferences in the light most favorable to the opposing party.” (*Aguilar, supra*, 25 Cal.4th at p. 843, citations omitted.) Courts “‘construe the moving party's affidavits strictly, construe the opponent's affidavits liberally, and resolve doubts about the propriety of granting the motion in favor of the party opposing it.’” (*Unilab Corp. v. Angeles-IPA* (2016) 244 Cal.App.4th 622, 636, *quoting Seo v. All-Makes Overhead Doors* (2002) 97 Cal.App.4th 1193, 1201–1202.) A court may not make credibility determinations or weigh the evidence on a motion for summary judgment, and all evidentiary conflicts are to be resolved against the moving party. (*McCabe v. American Honda Motor Corp.* (2002) 100 Cal.App.4th 1111, 1119.) “The court . . . does not resolve issues of fact. The court seeks to find contradictions in the evidence, or inferences reasonably deducible from the evidence, which raise a triable issue of material fact.” (*Johnson v. United Cerebral Palsy, etc.* (2009) 173 Cal.App.4th 740, 754, citation omitted.) “[S]ummary judgment cannot be granted when the facts are susceptible [of] more than one reasonable inference . . .” (*Rosas v. BASF Corp.* (2015) 236 Cal.App.4th 1378, 1392.)

Pham's Cross-Complaint

“A summary judgment motion is directed to the issues framed by the pleadings”. (*Canales v. Wells Fargo Bank, N.A.* (2018) 23 Cal.App.5th 1262, 1268). The court looks to the pleadings as “the outer measure of materiality” in a motion for summary judgment. (*FPI Development, Inc. v. Nakashima* (1991) 231 Cal.App.3d 367, 381.)

Pham alleges the following in his Cross-Complaint:

Cross-Defendant Nguyen Nhu Nguyen is a resident of Gardena who offered himself as the artificial spouse for profit to Plaintiff/Cross-Defendant Kim Lien Do. (CC, ¶ 4). Pham discovered Do was in an artificial marriage with Nguyen as part of plot to obtain citizenship for her, her children, and Cross-Defendant Quang. (CC, ¶ 4). Do and Nguyen were married in Vegas on 11/15/15. (CC, ¶ 10).

In May of 2023, Pham was served with the Complaint by Do in this action. The Complaint filed by Do asserts three causes of action for partition of real property, money had and received, and promissory estoppel. According to the Complaint, Do and Pham are the owners of the subject real property commonly known as 13958 Anita Place, Garden Grove, CA 92843, and title to the Anita Place property is currently held as follows: “Kim Lien Thi Do, a single woman as to undivided 60 % interest and Paul B. Pham as to undivided 40% interest, as tenants in common”. (CC, ¶ 27; Compl., ¶¶ 3, 4). Do alleges that she requested Pham pay \$90,000.00, which accounts for Pham’s 40% share of the total deposit of \$225,000.00 toward the purchase price of the Property, and to date, Pham has refused to pay his portion of the deposit and has refused to cooperate with Plaintiff’s desire to sell the Property. (Compl., ¶ 15).

In the Cross-Complaint, Pham now seeks reformation of the deed. Pham alleges that Nguyen was legally married to Do at the time the deed was issued. (CC, ¶ 34). He alleges that he must join as defendants in the partition action all persons having or claiming interests of record or actually known to the plaintiff or who is reasonably apparent from an inspection of the property, in the property as to which a partition is sought, pursuant to Code Civ. Proc. § 872.510. (CC, ¶ 35). He alleges that Nguyen’s acts, omissions, and marriage to Do render him an indispensable and necessary party for the partition and reformation actions. (CC, ¶ 37). Grounds exist for reformation of the deed which Plaintiff asserts for partition (Exhibit B) so that Do, Quang and Nguyen have no interest in the property. (CC, ¶ 39). The deed is allegedly false on its face as

it states “Kim Lien Thi Do, a single woman” when she was married. (CC, ¶ 40).

The only cause of action against Nguyen is the cause of action for reformation. Pham also asserts causes of action for breach of fiduciary duty against Cross-Defendant Do, aiding and abetting breach of fiduciary duty against Cross-Defendant Quang, fraud against Cross-Defendants Do and Quang, and unjust enrichment against Cross-Defendant Do.

Reformation

Civ. Code § 3399 states as follows:

When, through fraud or a mutual mistake of the parties, or a mistake of one party, which the other at the time knew or suspected, a written contract does not truly express the intention of the parties, it may be revised on the application of a party aggrieved, so as to express that intention, so far as it can be done without prejudice to rights acquired by third persons, in good faith and for value.

Pham seeks reformation of the deed, and alleges that Nguyen has been named in this cause of action as a necessary and/or indispensable party because he is legally married to Do, and may have an interest pursuant to the laws governing community property.

Code Civ. Proc. § 762.010 provides as follows: “The plaintiff shall name as defendants in the action the persons having adverse claims to the title of the plaintiff against which a determination is sought.” In *Wilson v. Shea* (1924) 194 Cal.653, 658, the court held that “in actions for the reformation of agreements all persons whose interests in the subject-matter, legal or equitable, will be affected by the decree are necessary parties. If they do not appear as parties plaintiff they should then be joined as parties defendant.”

Nguyen contends that the reformation cause of action fails because Nguyen has no interest in the property, and provides the following in his separate statement of undisputed material facts (SSUMF):

“I have never met PAUL B. PHAM in person”. (SSUMF 1, Nguyen Decl., ¶ 2). “I have never spoken to PAUL B. PHAM by telephone, video call, or any other verbal medium.” (SSUMF 2, Nguyen Decl., ¶ 2). “I have never corresponded with PAUL B. PHAM via email, text message, social media, or written letter.” (SSUMF 3, Nguyen Decl., ¶ 2). “I never had any discussion or made any representations or

promises to PAUL B. PHAM regarding the real property located at 13958 Anita Place, Garden Grove.” (SSUMF 4, Nguyen Decl., ¶ 3).

“I did not participate in any negotiations, discussions, or agreements involving PAUL B. PHAM regarding the purchase, financing, or maintenance of the Subject” property. (SSUMF 5, Nguyen Decl., ¶ 3). “I never received any funds from PAUL B. PHAM, including but not limited to any portion of the alleged \$220,000 down payment or the \$150,000 in alleged ‘family support.’” (SSUMF 6, Nguyen Decl., ¶ 4). “I am not a party to the Grant Deed for the Subject Property.” (SSUMF 7, Nguyen Decl., ¶ 4). “I hold no recorded legal or equitable interest in said property.” (SSUMF 8, Nguyen Decl., ¶ 4). “To the extent I may have any interest in the Property by operation of law, I hereby disclaim any and all community property interest, or any other legal or equitable interest, in the Subject Property.” (SSUMF 9, Nguyen Decl., ¶ 4).

However, Pham’s Cross-Complaint does not allege that Nguyen is on the deed. Rather, Pham contends that Nguyen is a necessary party to the reformation cause of action because he is married to Do, who is on the deed. Under such a theory, if the deed were reformed to exclude Do, Nguyen could be a proper party if it can be established that his interest is affected. Nguyen, as moving party, failed to establish why Pham’s claim for reformation fails under such a theory.

In Nguyen’s three-page memorandum of points and authorities, Nguyen only cites to Civ. Code § 3399 in support of his argument that there can be no reformation claim as to him. But Civ. Code § 3399 does not provide that someone such as Nguyen, who is not a party to the deed, is an improper party in a reformation claim. To the contrary, Civ. Code §3399 applies to any “aggrieved party.” Besides Civ. Code § 3399, and his general reference to Code Civ. Proc. § 437c and *Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826 for the standard on motion for summary judgment, Nguyen cites to no other law or authority in his moving papers.

Under Cal. Rules of Court, Rule 3.1113(b), the memorandum of points and authorities “must contain a statement of facts, a concise statement of the law, evidence and arguments relied on, and a discussion of the statutes, cases and textbooks cited in support of the position advanced.” (CRC 3.1113(b); see *Quantum Cooking Concepts, Inc. v. LV Assocs., Inc.* (2011) 197 Cal.App.4th 927, 934 [holding the trial court is not required to “comb the record and the law for factual and legal support that a party has failed to identify or provide”]; see also *Maral v. City of Live Oak* (2013) 221 Cal.App.4th 975, 984-985 [a court is “not required to examine undeveloped

claims, nor to make arguments for parties”, it is to evaluate “legal argument with citation of authorities on the points made.”]).

Nguyen argues that this cause of action fails because he is not on the deed, has had no communications with Pham, and never received funds from Pham. But Nguyen does not make any argument or cite to any authority challenging Pham’s allegation that Nguyen’s marriage to Do makes Nguyen a proper party to the reformation cause of action.

Nguyen also argues that he has now provided a declaration disclaiming his interest in the property. In support of the instant motion, Nguyen provided a declaration declaring as follows: “To the extent I may have any interest in the Property by operation of law, I hereby disclaim any and all community property interest, or any other legal or equitable interest, in the Subject Property.” (Nguyen Decl., ¶ 4).

However, Nguyen does not ask this court for a judgment stating that he has no interest in the property. Rather, he asks this court to find judgment in his favor and against Pham on the cause of action for reformation. (See Motion, pg. 1).

Pham cites to *In re Brace* (2020) 9 Cal. 5th 903, 927, where the court held: “Family Code section 760 [community property statute] does not permit the community property presumption to be rebutted simply by the manner in which a married couple takes title.” In response, and for the first time in his Reply, Nguyen argues that the community property presumption cannot apply because Pham’s own statements establish that Nguyen and Do were not “cohabitating.” However, Nguyen may not raise an entirely new theory for the first time on Reply, particularly where Pham specifically alleged in his Cross-Complaint that Nguyen is a necessary party for the partition action because of the community property presumption under Fam. Code § 760. (CC, ¶ 8). As the moving party, Nguyen was required to address and develop this theory in his moving papers, and failed to do so. (See *Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1538 [“[p]oints raised for the first time in a reply brief will ordinarily not be considered, because such consideration would deprive the respondent of an opportunity to counter the argument.”])).

Pursuant to the foregoing, the court finds that Nguyen failed to meet his initial burden.

		<u>Objections</u> Cross-Defendant Nguyen asserts objections to the declaration of Paul Pham and the declaration of Dale Washington. The court declines to rule on these objections pursuant to Code Civ. Proc. § 437c, subd. (q), as Cross-Defendant Nguyen failed to meet his initial burden. Cross-Complainant Paul Pham shall give notice.
13	Gillespie vs. Ford Motor Company	TENTATIVE RULING: For the reasons set forth below, the unopposed Motion for Summary Judgment brought by Defendants Ford Motor Company and Ken Grody Ford is GRANTED. <u>Requests for Adjudication</u> The Motion identifies <i>nine</i> issues for adjudication; however, multiple issues are associated with the same causes of action. Pursuant to Code of Civil Procedure section 437c, subdivision (f)(1), a party may seek summary adjudication as “to one or more causes of action within an action, one or more affirmative defenses, one or more claims for damages, or one or more issues of duty...” (Code Civ. Proc., § 437c, subd. (f)(1).) Additionally, “[i]f summary adjudication is sought, whether separately or as an alternative to the motion for summary judgment, the specific cause of action, affirmative defense, claims for damages, or issues of duty must be stated specifically in the notice of motion and be repeated verbatim, in the separate statement of undisputed material facts.” (Cal. Rules of Court rule 3.1350(b).) As the Notice of Motion does not identify any specific affirmative defense, claim for damages or issues of duty and, instead, only references the causes of action, the court interprets the Notice as seeking adjudication of each cause of action. Applying the above herein, the Court will rule on each of the six causes of action and need not rule on duplicative issues, asserting the same claims fail for different reasons. <u>First Cause of Action: Violation of Civil Code §1793.2(d):</u> Pursuant to Civil Code section 1793.2, subdivision (d), a manufacturer who is “unable to service or repair a new motor vehicle...to conform

to the applicable express warranties after a reasonable number of attempts...shall either promptly replace the new motor vehicle...or promptly make restitution to the buyer..." (Civ. Code, § 1793.2, subd. (d)(2.)

"Any buyer of consumer goods who is damaged by a failure to comply with any obligation under this chapter or under an implied or express warranty or service contract may bring an action for the recovery of damages and other legal and equitable relief." (Civ. Code, § 1794, subd. (a).)

As explained in *Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, "[t]he statute requires the manufacturer to afford the specified remedies of restitution or replacement if that manufacturer is unable to repair the vehicle 'after a reasonable number of attempts.'" (*Id.* at p. 1208.) "'Attempts' is plural. The statute does not require the manufacturer to make restitution or replace a vehicle if it has had only one opportunity to repair that vehicle." (*Ibid.*)

"A single attempt does not meet the statutory threshold, so that there is no need for a trier of fact to determine its reasonableness." (*Silvio v. Ford Motor Co.* (2003) 109 Cal.App.4th 1205, 1209.)

Here, the undisputed evidence indicates Defendant was provided only one opportunity to repair any alleged defect.

Initially, the First Amended Complaint identifies only one repair attempt on January 18, 2021. (¶43 of FAC.) Per the Complaint, on that day, Plaintiff "presented the Subject Vehicle to Defendant's authorized repair facility for complaints regarding the transmission, including, inter alia, that the Vehicle would not go past third gear, slipp[ed] in gear, delayed engagement into gear" and experienced "hard shifts" and "clanking." (*Ibid.*)

Consistent with the above allegation, Defense Counsel declares that only a single repair order was produced by Plaintiff in this action. (¶5 of Marrett Declaration and Exhibit 4 thereto.) This repair order is dated January 18, 2021, and indicates Plaintiff reported the following: "Intermittent the wrench warning light came won't go past 3rd gear slipping delayed engagement condition, shifting hard and clanking condition felt, 2-3 flare ups and 3-4 and upshifts are late slipping condition CK and advise 3636." (*Id.* [capitalization altered from original].)

Per Plaintiff, other than the above and "maybe another one for an oil change and...door adjustment" he did not recall bringing his vehicle

to a dealership for repairs. (¶9 of Marret Declaration and Exhibit 8 thereto [see pg. 271 of ROA No. 114].)

The Complaint does not allege a defect with the door; however, even assuming the referenced “door adjustment” constitutes an attempt to repair a defect, the above testimony indicates only one visit occurred, for this purpose.

Thereafter, the Complaint alleges Defendant failed to repair the identified transmission complaints, “despite a reasonable number of repair opportunities” (¶43-¶44 of FAC); however, (although not cited by Defendant), Plaintiff testified that the transmission performs fine right now, stating: “Yes. As far as I can tell, it’s okay. I noticed some time it got a little lag in it – it’s – it’s all right.” (¶9 of Marret Declaration and Exhibit 8 thereto [see pg. 274 of ROA No. 114].)

Based on the above, the undisputed evidence proves that Defendant was provided only one opportunity to perform repairs, which is insufficient to support a claim pursuant to Civil Code section 1793.2, subdivision (d). Moreover, the undisputed evidence suggests that transmission issues *were* repaired.

For the above reasons, Defendant’s request for summary adjudication on the First Cause of Action is GRANTED.

Second Cause of Action: Violation of Civil Code §1793.2(b)

Civil Code section 1793.2, subdivision (b) states that “the goods shall be serviced or repaired so as to conform to the applicable warranties within 30 days.” (Civ. Code, § 1793.2, subd. (b).)

Within the Second Cause of Action, Plaintiff alleges Defendant failed to “service or repair the Vehicle so as to conform to the applicable warranties within 30 days,” as required by the above provision. (¶66 of FAC.)

However, as referenced above, the undisputed evidence indicates the single repair attempt in January of 2021, lasted less than 30-days. Per the Repair Order produced by Plaintiff, the vehicle was delivered to Ken Grody Ford on January 18, 2021, and returned on January 26, 2021. (¶5 of Marrett Declaration and Exhibit 4 thereto.) Plaintiff does not dispute the contents of this Repair Order or otherwise object thereto.

Additionally, Plaintiff testified that the truck was at Ken Grody Ford “for six or seven days.” (¶9 of Marret Declaration and Exhibit 8 thereto [see pg. 269 of ROA No. 114].)

Further, the undisputed evidence indicates the vehicle was never presented for additional repairs to the transmission and the transmission now operates “all right.” (See ¶9 of Marret Declaration and Exhibit 8 thereto [pgs. 271 and 274 of ROA No. 114].)

Based on the above, the undisputed evidence proves Defendant did not violate Civil Code section 1793.2, subdivision (b).

For the above reasons, Defendant’s request for summary adjudication on the Second Cause of Action is GRANTED.

Third Cause of Action: Violation of Civil Code §1793.2(a)(3):

Civil Code section 1793.2, subdivision (a)(3) requires manufacturers “[m]ake available to authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” (Civ. Code, § 1793.2, subd. (a)(3).)

In violation of the above, Plaintiff alleges “Defendant FMC failed to make available to its authorized service and repair facilities sufficient service literature and replacement parts to effect repairs during the express warranty period.” (¶71 of FAC.)

In seeking adjudication of this claim, Defendant cites federal authority which addresses the *pleading* standard for claims arising from Civil Code section 1793.2, subdivision (a)(3). The offered citation *suggests* Defendant is challenging only the sufficiency of the allegations; however, Defendant nonetheless asserts “Ken Grody had sufficient literature available between January 21, 2021, and January 26, 2021, to diagnose the F-150 and complete the repairs.” (See SSUF No. 14 [ROA No. 111].)

Consequently, Defendant *is* seeking to challenge the sufficiency of the underlying evidence.

In support of the above statement, Defendant offers the January 18, 2021, Repair Order and the above discussed testimony from Plaintiff, which indicates the vehicle was delivered for transmission repairs only once. (See SSUF No. 14 [ROA No. 111], citing ¶5 and ¶9 of Marrett Declaration and Exhibits 4 and 8 thereto.)

As indicated above, Defense Counsel declares that only a single repair order was produced by Plaintiff in this action. (§5 of Marrett Declaration and Exhibit 4 thereto.) Similarly, Plaintiff's testimony indicates that only one transmission repair attempt was made. (§9 of Marret Declaration and Exhibit 8 thereto [see pg. 271 of ROA No. 114].) Further, Plaintiff testified that the transmission performs fine right now, stating: "Yes. As far as I can tell, it's okay. I noticed some time it got a little lag in it – it's – it's all right." (§9 of Marret Declaration and Exhibit 8 thereto [see pg. 274 of ROA No. 114].)

The undisputed evidence proves the vehicle was repaired and, necessarily, sufficient service literature and replacement parts were provided, where the repair was completed.

For the above reasons, Defendant's request for summary adjudication on the Third Cause of Action is GRANTED.

Fourth Cause of Action: Implied Warranty

1. Statute of Limitations

The implied warranty of merchantability has a maximum duration of one-year. (Civ. Code, § 1791.1, subd. (c).) Additionally, "[t]he statute of limitations for breaches of the implied warranty of merchantability is four years." (*Montoya v. Ford Motor Co.* (2020) 46 Cal.App.5th 493, 494.)

"California courts have held that the statute of limitations for an action for breach of warranty under the Song-Beverly Act is governed by the same statute that governs statute of limitations for warranties arising under the Uniform Commercial Code: section 2725 of the Uniform Commercial Code." (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1305-1306, citing *Krieger v. Nick Alexander Imports, Inc.* (1991) 234 Cal.App.3d 205, 215.)

Per Commercial Code section 2725, "[a] breach of warranty occurs when tender of delivery is made, except that where a warranty explicitly extends to future performance of the goods and discovery of the breach must await the time of such performance the cause of action accrues when the breach is or should have been discovered." (Com. Code, § 2725, subd. (2).)

Citing non-binding federal authorities, Defendant asserts this claim accrued upon tender of delivery. (See Motion: 16:10-12 (citing *Yetter v. Ford Motor Co.* (N.D. Cal. 2019) 438 F.Supp.3d 210, 221 and *Ferris v. Ford Motor Co.* (N.D. Cal. 2019) 2019 WL 1100376 at 3.)

However, the Court in *Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297 expressly analyzed a claim brought pursuant to the Song-Beverly Act and held “[t]he implied warranty of merchantability may be breached by a latent defect undiscoverable at the time of sale.” (*Id.* at p. 1304.) “In the case of a latent defect, a product is rendered unmerchantable, and the warranty of merchantability is breached, by the existence of the unseen defect, not by its subsequent discovery.” (*Id.* at p. 1305.) “Thus, although a defect may not be discovered for months or years after a sale, merchantability is evaluated as if the defect were known.” (*Ibid.*)

“[B]y giving the implied warranty a limited prospective existence beyond the time of delivery, the Legislature created the possibility that the implied warranty could be breached after delivery.” (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1309.) “As discussed above, this is a change from the Uniform Commercial Code, under which the implied warranty could be breached only at the time of delivery.” (*Ibid.*)

In sum, the *Mexia* Court concluded: “In light of the plain language of the duration provision, and the policy considerations at play in construing a provision of the Song-Beverly Act, we interpret the duration provision as providing the implied warranties under the Song-Beverly Act with a limited prospective existence beyond the date of delivery.” (*Mexia v. Rinker Boat Co., Inc.* (2009) 174 Cal.App.4th 1297, 1311.)

Based on the above, delayed discovery *may* apply to Plaintiff’s Fourth Cause of Action; however, Plaintiff has not submitted any evidence which supports its application herein.

Where a statute of limitations defense is raised, a moving defendant bears the initial burden to demonstrate the claim is barred. (*Aryeh v. Canon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1197.) Once that burden is met, the burden shifts to plaintiff “to demonstrate his claims survive based on one or more nonstatutory exceptions to the basic limitations period.” (*Ibid.*; See also *Glue-Fold, Inc. v. Slautterback Corp.* (2000) 82 Cal.App.4th 1018, 1030 and *Acosta v. Glenfed Development Corp.* (2005) 128 Cal.App.4th 1278, 1292-1293.)

“That plaintiffs may have anticipated defendants’ reliance on a limitations defense by alleging facts supporting a statutory exception to that defense is not sufficient to justify shifting the burden that

otherwise would be imposed on plaintiffs.” (*Acosta v. Glenfed Development Corp.* (2005) 128 Cal.App.4th 1278, 1293.)

Here, it is undisputed that Plaintiff purchased his vehicle on May 5, 2018. (See ¶27 of FAC; See also ¶2 of Marrett Declaration and Exhibit 1 thereto [Retail Installment Sale Contract dated May 5, 2018].) Absent application of a statutory exception, such as delayed discovery or tolling, the relevant statute of limitation ran on May 5, 2022; however, this action was not initiated until October 5, 2023. (See ROA No. 2.)

Based on the above, Defendant established that Plaintiff’s Fourth Cause of Action is barred by the statute of limitations.

While Plaintiff alleged *multiple* exceptions to the limitations period (See ¶12-¶26 of FAC), Plaintiff did not oppose this motion or otherwise establish a triable issue regarding the above, via admissible evidence. (See *Aryeh v. Cannon Business Solutions, Inc.* (2013) 55 Cal.4th 1185, 1197.)

While it is undisputed that Plaintiff’s sole presentation of the vehicle for repairs occurred in January of 2021 (see discussion above), there has been no additional evidence offered which indicates this was the earliest Plaintiff could discover the defect.

In order to rely on delayed discovery, Plaintiff was required to show “(1) the time and manner of discovery *and* (2) the inability to have made earlier discovery despite reasonable diligence.” (*Fox v. Ethicon Endo-Surgery, Inc.* (2005) 35 Cal.4th 797, 808.)

For the above reasons, the court finds that the Fourth Cause of Action is barred by the applicable statute of limitations and the court grants summary adjudication on that basis.

Fifth Cause of Action: Fraud:

“[T]he elements of an action for fraud and deceit based on a concealment are: (1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage.”

(*Boschma v. Home Loan Center, Inc.* (2011) 198 Cal.App.4th 230, 248 [emphasis added].)

As noted by Defendant, “[t]he very existence of a warranty presupposes that some defects may occur.” (*Santana v. FCA US, LLC* (2020) 56 Cal.App.5th 334, 345.) Thus, to show concealment, Plaintiff must establish Defendant was aware of a defect and either unwilling or unable to fix it. (*Id.* at pp. 345-346.)

In addition to the above, “[t]he complaint limits the issues to be addressed at the motion for summary judgment.” (*Laabs v. City of Victorville* (2008) 163 Cal.App.4th 1242, 1258.) “A moving party seeking summary judgment or adjudication is not required to go beyond the allegations of the pleading....” (*Johnson v. The Raytheon Co., Inc.* (2019) 33 Cal.App.5th 617, 636.)

Here, in alleging concealment, Plaintiff asserts that “at no point prior to purchase was Plaintiff advised the Vehicle and its 10-Speed automatic transmission were defective.” (¶80 of FAC.) All allegations asserting Defendant Ford had knowledge of a defect, specifically reference a 10-Speed transmission. (See ¶45, ¶47-¶55 and ¶84 of FAC.)

Per the Complaint, “[p]rior to Plaintiff purchasing the Vehicle, Defendant FMC knew that vehicles equipped with the same 10-speed transmission as the Vehicle suffered from one or more defects that can cause the vehicles and their 10-speed transmission to experience hesitation and/or delayed acceleration; harsh and/or hard shifting; jerking, shuddering, and/or juddering (‘Transmission Defect’).” (¶45 of FAC; See also ¶84 of FAC.)

To support the existence of knowledge, the Complaint identifies multiple Technical Service Bulletins (“TSBs”), relating specifically to a “10R80 Automatic Transmission.” (¶47-¶55 of FAC.) Plaintiff cites the same TSBs and 10-Speed Transmission in response to discovery, when asked to describe the information supporting his allegation of knowledge. (¶8 of Marrett Declaration and Exhibit 7 thereto, at SROG No. 65.)

In contrast to the allegations in the Complaint, however, the undisputed evidence indicates Plaintiff’s vehicle is equipped with a 6-Speed transmission. (See SSUF No. 27 and ¶9 of Marret Declaration and Exhibit 8 thereto [see pg. 268 of ROA No. 114].)

Additionally, the undisputed evidence indicates only a single repair was performed and Plaintiff’s transmission is now performing fine.

(See ¶5 of Marrett Declaration and Exhibit 4 thereto; See also ¶9 of Marret Declaration and Exhibit 8 thereto [see pgs. 271 and 274 of ROA No. 114].)

The undisputed evidence indicates that, to the extent a defect exists in Ford's 10-Speed transmission, any concealment of this fact was immaterial to Plaintiff and his 6-Speed vehicle.

For the above reasons, Defendant's request for summary adjudication on the Fifth Cause of Action is GRANTED.

Sixth Cause of Action: Negligent Repair

Defendant Ken Grody seeks summary adjudication of the Sixth Cause of Action, solely on the basis the claim is barred by the economic loss rule.

"The economic loss rule requires a purchaser to recover in contract for purely economic loss due to disappointed expectations, unless he can demonstrate harm above and beyond a broken contractual promise." (*Robinson Helicopter Co., Inc. v. Dana Corp.* (2004) 34 Cal.4th 979, 988.) However, no contract is identified, as between Defendant Ken Grody and Plaintiff.

Relying on the allegation the "causes of action arise out of the warranty obligations" (See ¶31 of FAC), Defendant asserts the claim arises from the *warranty* contract; however, the warranty contract is alleged to have been entered into, solely between Plaintiff and Defendant FMC. (¶27 of FAC.)

Additionally, regardless of the general allegation stated above, the claim for Negligent Repair makes no reference to the warranty. Instead, Plaintiff alleges he "delivered the Subject Vehicle to Defendant KEN for substantial repair," "Defendant KEN owed a duty to Plaintiff to use ordinary care and skill in storage, preparation and repair of the Subject Vehicle," and this duty was breached. (¶97-¶99 of FAC.)

As explained by the California Supreme Court in *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905, tort claims "are barred when they arise from – or are not independent of – the parties' underlying contracts." (*Id.* at p. 924.)

Absent a contract between Plaintiff and Defendant Ken Grody, this argument fails.

Although not explicitly stated or argued, Defendant *appears* to suggest the Repair Order produced by Plaintiff in discovery constitutes a contract. (See ¶5 of Marrett Declaration and Exhibit 4 thereto); however, authority indicates that *service* contracts are not subject to the economic loss doctrine.

As explained by the Court in *North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764 (*North American*), “in actions arising from the sale or purchase of a defective product, plaintiffs seeking economic losses must be able to demonstrate that either physical damage to property (other than the defective product itself) or personal injury accompanied such losses; if they cannot, then they would be precluded from any tort recovery in strict liability or negligence.” (*Id.* at p. 780.) “However, such authorities would seem to have little or no application when the commercial relationship of the parties does not involve the sale of goods or products, nor the rules developed under the law merchant and the Uniform Commercial code, but rather relates only to the performance of services.” (*Id.* at pp. 780-781.) “Thus, in circumstances such as those presented by this case, the policy concerns underlying the limitations on recovery of economic losses articulated by the *Seely* court and its progeny are not present.” (*Id.* at p. 781.)

“[B]ecause this case arises from a contract for the performance of services rather than the sale of goods, and the negligent performance of that contract allegedly resulted in *foreseeable* economic loss to North American, the so-called ‘economic loss rule’ does not bar recovery even though (1) the only damages that North American seeks are based solely on economic loss and (2) contractual privity is present.” (*Id.* at p. 770.)

While Defendant suggests that *Sheen v. Wells Fargo Bank, N.A.* (2022) 12 Cal.5th 905 (*Sheen*) overruled *North American Chemical*, no references to this decision are included within *Sheen*. Nor does *Sheen* find the contractual economic loss rule broadly applies against service contracts.

Instead, the *Sheen* Court acknowledged the “recognized exception to the economic loss rule for consumers who contract for certain kinds of professional services.” (*Sheen, supra*, 12 Cal.5th at p. 933.) “[I]n that context...a cause of action for negligence ensures that the consumer receives the services the professional agreed to provide. In such settings, professionals generally agree to provide ‘careful efforts’ in rendering contracted-for services, but ‘most clients do not know enough to protect themselves by inspecting the professional’s work or by other independent means.’ ” (*Ibid.*) “Given this disparity, a claim

for professional negligence can serve the important purpose of ensuring that professionals render the ‘careful efforts’ they have contracted to provide.” (*Ibid.*)

Defendant draws attention to language within *Sheen* which discusses the *Biakanja* factors; however, this language addresses the element of *duty*. In *Sheen* the Court concluded it could not “rely on *Biakanja* to impose a tort duty on a contracting party to avoid negligently causing monetary harm to another party to that contract.” (*Sheen, supra*, 12 Cal.5th at p. 938.) “[T]he *Biakanja* factors are not applicable when, as here, the litigants are in contractual privity and the plaintiff’s claim is not ‘independent of the contract arising from principles of tort law.’” (*Id.* at p. 942.) The Court in *Sheen* ultimately held that “a lender owes no tort duty sounding in general negligence principles to ‘process, review and respond carefully and completely to’ the borrower’s application.” (*Id.* at 948.)

The above holding is *not* contrary to the holding in *North American Chemical*, as the Court in *North American Chemical* was not relying on the *Biakanja* factors to establish the existence of a *duty*.

Instead, the Court in *North American Chemical* explained: “[F]or over fifty years California has also recognized the fundamental principle that ‘[a]ccompanying every contract is a common-law duty to perform with care, skill, reasonable expedience, and faithfulness the thing agreed to be done, and a negligent failure to observe any of these conditions is a tort, as well as a breach of contract.’” (*North American Chemical Co. v. Superior Court* (1997) 59 Cal.App.4th 764, 774.) “A contract for the performance of services, as we have already discussed, necessarily carries with it both the reasonable expectation and implied at law promise that it will be performed with reasonable care.” (*Id.* at p. 785 [emphasis added].)

Having found the existence of a duty sufficient to support a negligence claim, the Court in *North American Chemical* proceeded, in a separate portion of the opinion, to hold that the economic loss rule did *not* apply to service contracts, where the economic loss was foreseeable (a *Biakanja* factor.) (*Id.* at p. 770.) As the Court in *North American Chemical* did not rely on the *Biakanja* factors to establish the existence of a duty, it is not inconsistent with *Sheen*.

Based on the above, looking solely at the argument presented in the motion, the court might deny summary adjudication of the Sixth Cause of Action; however, as indicated above, the undisputed evidence (cited in connection with *other* claims) indicates Defendant Ken Grody was not negligent.

		“The elements of a negligence cause of action are duty, breach, causation, and damages.” (<i>Coyle v. Historic Mission Inn Corporation</i> (2018) 24 Cal.App.5th 627, 634.) Additionally, there exists a “common-law duty to perform with care, skill, reasonable expedience, and faithfulness the thing agreed to be done....” (<i>Stonegate Homeowners Assn. v. Staben</i> (2006) 144 Cal.App.4th 740, 748.) The undisputed evidence indicates that only a single repair was performed. (See ¶5 of Marrett Declaration and Exhibit 4 thereto; See also ¶9 of Marret Declaration and Exhibit 8 thereto [see pg. 271 of ROA No. 114].) Per Plaintiff, he did not bring his vehicle back to <i>any</i> Ford dealerships, for any other repairs. (<i>Ibid.</i>) Finally, Plaintiff indicates his transmission is now performing fine. (¶9 of Marret Declaration and Exhibit 8 thereto [see pg. 274 of ROA No. 114]; See, generally, SSUF Nos. 2, 5, 14, 28 and 29.) Based on the above, the undisputed evidence indicates Defendant Ken Grody did not breach any duty to Plaintiff. Of note, while Defendant offered only one legal argument directed towards the Sixth Cause of Action, “[t]he motion for summary judgment shall be granted if all the papers submitted show that there is no triable issue as to any material fact and that the moving party is entitled to a judgment as a matter of law.” (Code Civ. Proc., § 437c, subd. (c).) Here, reviewing all the offered evidence indicates there are no triable issues, as to the Sixth Cause of Action. For the above reasons, Defendant’s request for summary adjudication on the Sixth Cause of Action is GRANTED. Moving party to give notice.
14	Palomar Specialty Insurance Company vs. Savant Construction, Inc.	CMC
15	Governing Board of the Los Alamitos Unified School District vs.	TENTATIVE RULING: Petitioner Governing Board of the Los Alamitos Unified School District (“LAUSD”) has moved under Code Civ. Proc. § 1094.5(g)

	Commission on Professional Competence by and through the Office of Administrative Hearings of the State of California	and (h) for an order to maintain the status quo pending a final decision on this writ of mandate. For the reasons set forth below, the request for a stay is DENIED. <u>Legal Standard for Stay</u> CCP § 1094.5(g) provides: Except as provided in subdivision (h), the court in which proceedings under this section are instituted may stay the operation of the administrative order or decision pending the judgment of the court, or until the filing of a notice of appeal from the judgment or until the expiration of the time for filing the notice, whichever occurs first. However, <u>no such stay shall be imposed or continued if the court is satisfied that it is against the public interest.</u> CCP § 1094.5(h)(1) states: The court in which proceedings under this section are instituted may stay the operation of the administrative order or decision of any licensed hospital or any state agency made after a hearing required by statute to be conducted under the Administrative Procedure Act, as set forth in Chapter 5 (commencing with Section 11500) of Part 1 of Division 3 of Title 2 of the Government Code, conducted by the agency itself or an administrative law judge on the staff of the Office of Administrative Hearings pending the judgment of the court, or until the filing of a notice of appeal from the judgment or until the expiration of the time for filing the notice, whichever occurs first. <u>However, the stay shall not be imposed or continued unless the court is satisfied that the public interest will not suffer and that the licensed hospital or agency is unlikely to prevail ultimately on the merits.</u> The application for the stay shall be accompanied by proof of service of a copy of the application on the respondent. Service shall be made in the manner provided by Title 4.5 (commencing with Section 405) of Part 2 or Chapter 5 (commencing with Section 1010) of Title 14 of Part 2. This statute “unequivocally requires the superior court weigh the public interest in each individual case.” (<i>Sterling v. Santa Monica Rent Control Bd.</i> (1985) 168 Cal.App.3d 176, 187; see also <i>Am. Indian Model Schs. v. Oakland Unified Sch. Dist.</i> (2014) 227 Cal.App.4th 258, 295 (“The court is required to weigh “the public interest when
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considering whether to grant the request for a preliminary injunction.”)).

Relevant Facts and the Parties’ Positions

Petitioner contends that on August 5, 2025, Petitioner adopted a statement of charges against Real Party in Interest David Moellenkamp to immediately suspend without pay and dismiss Real Party in Interest from his employment on the basis of immoral conduct, unprofessional conduct, and dishonesty, among other reasons.

An administrative hearing was conducted before Respondent, and Respondent issued a decision on May 22, 2026, overturning the District’s proposed immediate suspension without pay and dismissal.

Petitioner argues that a stay is necessary because Real Party-in-Interest was charged with immoral conduct. To the extent that the decision is reversed, protecting staff and students from such conduct would be in the public interest. Further, Petitioner argues that a stay would avoid significant disruption to the district’s operations because Moellenkamp’s reinstatement would require the District to find an open position or displace another employee at the very beginning of the 2026-2027 school year, interrupting the educational program and potentially impacting other employees’ rights. The specific positions (i.e. his assignment, work location, classroom, etc.) from which Moellenkamp was suspended have been filled with other permanent employees who have ongoing rights to retain those positions. (See Declaration of Dr. Ryan Weiss-Wright In Support of Request to Stay Decision ([“Weiss-Wright Decl.”], ¶ 4, attached as Exhibit 3.) If the decision were reversed, then the District would be disrupted in having a new position to fill.

Further, Petitioner argues that in Education Code section 44944, subsection (f), the legislature intended to stay the payment of fees if an appeal to a decision is made.

Real Party-in-Interest argues that Petitioner cannot meet the standard to grant a stay under section 1094.5. The statute provides that the court must deny the stay unless “the court is satisfied that the public interest will not suffer and that the licensed hospital or agency is unlikely to prevail ultimately on the merits” (CCP § 1094.5(h)(1)). Moellenkamp argues that the District has failed to establish that the public interest will not suffer and/or that Petitioner is likely to prevail on the merits.

Specifically, Moellenkamp argues that the administrative scheme intended for immediate payment of his salary under Education Code §

44946, that unpaid suspension is reversed upon the CPC having actually conducted a hearing on the merits and issuing a decision in favor of the teacher, as it did here, and the teacher must be reinstated and paid full back salary within five days of the CPC's decision.

Further, Moellenkamp argues that he would be prejudiced such that staying the CPC decision would be against the public interest. (*See Bostean v. Los Angeles Unified School Dist.* (1998) 63 Cal.App.4th 95, 110 (Education Code statutory scheme requires procedural due process before a permanent employee may be deprived of their property interest in their employment) The Legislature's scheme reflects a desire that public employees who are ordered reinstated to their jobs "should not ordinarily be left without employment and backpay for several years" pending appeals by the public agency. (*Lomeli v. Department of Corrections* (2003) 108 Cal.App.4th 788, 798.) As a result of the District's continued refusal to reinstate Moellenkamp, he has sustained, and will continue to sustain, lost wages, lost pension contributions and service credits, lost sick and other leave accruals, and lost salary step increases.

Finally, Moellenkamp argues that Petitioner has not established by admissible evidence that Petitioner is likely to prevail on the merits of this writ.

The Court's Analysis

The court finds that Petitioner has not met the legal standard to satisfy CCP § 1094.5 (g) or (h)(1) for a stay.

First, Petitioner has not established that a stay would benefit the public interest. Petitioner offers speculative hypotheticals as to Petitioner's harm. While Moellenkamp's position may have been filled, there is no showing that Petitioner is unable to comply with the Respondent's decision. Further, Petitioner's argument that other employees will have a difficult time with Real Party-in-Interest is not supported by any admissible evidence. The declaration of Dr. Ryan Weiss-Wright only mentions the difficulty of back-pay, but does not mention any conflicts with current employees. Instead, the court finds that the harm to Real Party-in-Interest is more prevalent with real wages, service hours, and salary step considerations that will be affected.

Further, Petitioner relies on Education Code section 44944, subsection (f), which provides the following, in part.

- "(4) If either the governing board of the school district or the employee petitions a court of competent jurisdiction for review

of the decision of the Commission on Professional Competence, the payment of expenses to members of the commission required by this subdivision shall not be stayed.” (Ed. Code, § 44944(f)(2)).

- “(5) If the decision of the Commission on Professional Competence is reversed or vacated by a court of competent jurisdiction, either the state, having paid the commission members' expenses, shall be entitled to reimbursement from the governing board of the school district for those expenses, or the governing board of the school district, having paid the expenses, shall be entitled to reimbursement from the state. If either the governing board of the school district or the employee petitions a court of competent jurisdiction for review of the decision to overturn the administrative law judge's decision, *the payment of the expenses of the hearing, including the cost of the administrative law judge required by this paragraph, shall be stayed until no further appeal is sought, or all appeals are exhausted.*” (Ed. Code, § 44944(f)(5)).

Under Petitioner’s authority, therefore, the legislature intended to stay the expenses of the administrative hearing—not stay the payment of back-pay and withhold the salary of a reinstated employee.

The court finds the legislative intent of Real Party-in-Interest’s authority more persuasive. Under Education Code § 44946, “[i]f the employee has been suspended pending the hearing, he shall be reinstated within *five days* after the governing board's decision in his favor, and *shall be paid full salary* by the governing board for the period of his suspension.” That the Legislature requires reinstatement and back pay within only five days establishes the Legislature’s intent to make an employee whole and reinstate an employee’s rights as soon as possible.

The public interest, therefore, favors an employee who has been withheld pay during suspension, be made whole if the suspension decision is overturned.

Further, the court finds that Petitioner has not established by admissible evidence that Petitioner is likely to prevail on the merits. Petitioner’s papers for the request to stay makes several arguments about the evidence that Respondent did or did not consider and allow. At this stage, without more, the arguments are pure speculation as to how the proceeding would have resulted if certain evidence was excluded/included.

		For these reasons, the request for a stay is DENIED. Respondent to give notice.
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